

TENTATIVE RULING(S) FOR AUGUST 18, 2026

Department S37 – Judge Winston Keh

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CIVSB2516010

Coleman v. Hernandez

TENTATIVE RULING(S):

PROCEDURAL BACKGROUND

Case No. CIVSB2516010 (Coleman Matter)

Plaintiffs Keneisha Coleman and Kennedy Coleman, Jr. filed a Complaint on June 4, 2025, against Defendants American Medical Response Ambulance Services, Inc.; American Medical Response of Southern California Company; and Andrei Hernandez. The operative First Amended Complaint, filed on March 19, 2026, alleges one cause of action for wrongful death. Plaintiffs allege that their mother, Louise Webb, passed away on May 3, 2024, due to Defendants' negligence in a February 18, 2022 incident where Webb suffered a cardio-respiratory arrest during transport to the hospital and thereafter remained in a near vegetative state until her death two years later. (FAC ¶¶ 22, 26.)

Related Case No. CIVSB2305418 (Webb Matter)

Louise Webb filed a Complaint on February 21, 2023, for negligence regarding the February 18, 2022 incident in Case No. CIVSB2305418. Following Webb's death in 2024, Keneisha Coleman substituted as her successor-in-interest in the *Webb* matter.

On April 14, 2024, the Court ordered the cases related.

The parties have previously disputed whether the two cases should be consolidated, and an OSC regarding consolidation is set for August 18, 2026 in CIVSB2305418. On May 11, 2026, the Court requested briefing from the parties on consolidation and the statute of limitations issue in the *Coleman* matter. In their briefing, the parties stated that they stipulated the two matters should be consolidated, but Defendants do not waive any defenses, including the statute of limitations defense at issue in the demurrer. (Def.'s 5/21/26 Brief at pp. 2-3; Pl.'s 5/29/26 Brief at pp. 5-6.)

Demurrer in the *Coleman* Matter

Defendants' demurrer to the first cause of action for wrongful death is before the Court. Defendants demur generally on the ground that Plaintiffs fail to state sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiffs oppose. Defendants replied.

Defendants' Request for Judicial Notice

Defendant requests the Court take judicial notice of the First Amended Complaint filed in the *Webb* matter. (RJN ¶ 1, Dik Decl. Ex. A.) The request is GRANTED under Evid. Code, § 452, subd. (d).

Plaintiffs' Objections to the Dik Declaration

Plaintiffs filed objections to the Declaration of Daniel K. Dik in support of Defendants' demurrer.

1. **Objections to paragraphs 4 -10 are sustained.** Those paragraphs consist largely of legal argument rather than facts as to which counsel would have personal knowledge. (Evid. Code, § 702.)
2. **Objections to paragraphs 1, 2, 3, and 11 are OVERRULED.** Paragraph 1 describes counsel's employment and purpose in making the declaration, which are facts counsel could personally know Paragraphs 2 and 11 describe meet and confer efforts and are similarly factual. Paragraph 3 summarizes the FAC and does not appear to contain legal argument.

Additionally, even if the objections were overruled, the Dik Declaration is irrelevant to the demurrer insofar as a demurrer may challenge only defects appearing on the face of the pleading or from matters outside the pleadings that are judicially noticeable. Accordingly, the Court considers the Dik Declaration only for the limited purpose of the parties' meet-and-confer efforts and not for determining the sufficiency of the demurrer.

Analysis

Defendants contend the wrongful death claim is time-barred by the statute of limitations. They argue Code of Civil Procedure section 340.5 supplies a one-year limitations period for professional negligence actions. Defendants further argue Plaintiffs knew of the alleged negligence at or before the time of death because a prior complaint based on the same alleged negligence was filed in the Webb matter on February 21, 2023, while Webb died on May 3, 2024; Plaintiffs filed the Coleman complaint on June 4, 2025—more than one year later. (Mtn. at pp. 7–11.)

Defendants additionally argue the Coleman action does not relate back to the Webb pleading. Plaintiffs respond they do not rely on relation-back, but instead contend the discovery rule renders the Coleman complaint timely.

Statutory framework and discovery rule

Code of Civil Procedure section 340.5 provides that an action for injury or death against a health care provider based upon professional negligence must be brought within: (1) three years after the date of injury, or (2) one year after the plaintiff discovers, or through reasonable diligence should have discovered, the injury—whichever occurs first. There is no dispute that the one-year period governs here.

The discovery rule postpones accrual until the plaintiff discovers, or has reason to discover, the cause of action. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1318.) Where the complaint shows on its face that the claim would be time-barred absent the benefit of the discovery rule, the plaintiff must specifically plead facts showing: (1) the time and manner of discovery, and (2) the inability to have made earlier discovery despite reasonable diligence. (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160.) Conclusory allegations do not withstand demurrer. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Application to the First Amended Complaint

Defendants argue the FAC fails to adequately plead delayed discovery.

The FAC alleges Defendants' alleged wrongful acts occurred on February 18, 2022. (FAC ¶ 26.) Webb remained in a "near vegetative state" until her death on May 3, 2024. (FAC ¶ 26.) A death certificate issued on June 5, 2024 states the cause of death was respiratory failure due to chronic obstructive pulmonary disease. (FAC ¶ 27.) Plaintiffs allege they received the death certificate "sometime after" it was issued and did not know or suspect a causal connection between Defendants' conduct and Decedent's death until sometime after receiving the death certificate and conducting "further inquiry." (FAC ¶¶ 26–28.)

Viewed most favorably to Plaintiffs, the FAC pleads a discovery date sometime after June 5, 2024—which would be within one year of the June 4, 2025 filing date. Plaintiffs could have provided more specificity as to timing, but the timeliness issue turns on whether the FAC adequately pleads the manner of discovery and **reasonable diligence**.

The FAC, however, does not adequately plead the **manner of discovery**. Plaintiffs do not allege they learned of a causal connection from the death certificate itself. Instead, they allege they did not know or suspect a causal connection until "after the receipt of the death certificate upon further inquiry." (FAC ¶ 28.) The pleading does not identify what the further inquiry involved or provide facts describing how Plaintiffs learned of the causal connection.

The FAC likewise does not adequately allege **inability to discover earlier despite reasonable diligence**. Plaintiffs state only that they made "further inquiry" after receiving the death certificate, without factual allegations describing what they did, when they did it, or how those steps amount to reasonable diligence. Plaintiffs argue the two-year period and alleged complexity of the care supports inability to discover earlier. Even liberally construed, the FAC provides no facts supporting reasonable diligence under the discovery rule standard.

Because Plaintiffs fail to plead facts showing both the manner of discovery and reasonable diligence for delayed discovery, the demurrer is properly sustained as to the first cause of action.

Code of Civil Procedure section 364 notice

Defendants also argue no notice was given under Code of Civil Procedure section 364 prior to filing.

Section 364 provides that no action based upon professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action. (Code Civ. Proc., § 364, subd. (a).)

However, section 365 provides that failure to comply with this chapter does not invalidate proceedings or affect the court's jurisdiction to render judgment. (Code Civ. Proc., § 365.) Courts have held that failure to comply with section 364 is not a basis for a demurrer or a motion to strike that would dispose of the action.

See Toigo v. Hayashida (1980) 103 Cal.App.3d 267, 269.

Accordingly, section 364 does not provide a proper basis to sustain a demurrer.

Ruling

1. **Defendants' demurrer is SUSTAINED with 20 days leave to amend.** The FAC is filed more than one year after Webb's death and does not plead sufficient facts supporting delayed discovery under Code of Civil Procedure section 340.5.
2. **Defendants' request for judicial notice is GRANTED**, and the Court takes judicial notice of the existence of the first amended complaint in the Webb matter.
3. **Plaintiffs' objections to paragraphs 4–10 of the Dik Declaration are SUSTAINED.**
4. **Plaintiffs' objections to paragraphs 1, 2, 3, and 11 of the Dik Declaration are OVERRULED.**

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CIVSB2520898

Montes v. GM

TENTATIVE RULING(S):

Before the Court is Plaintiff's fee motion totaling \$31,432.77. This figure includes \$21,718.40 in attorney's fees; a lodestar of 0.3, increasing attorney's fees by \$6,515.52; additional anticipated attorney's fees of \$2,500.00; and costs of \$698.85. Defendant opposes and Plaintiff replies.

Attorney's Rates

Plaintiff requests hourly rates of \$575 for lead attorney Ashkan Reza (12 years' experience); \$375 for attorneys Lauren Warwick and Chris Grigoryan; \$140 for case manager/legal assistant Michelle Nguyen; \$125 for case managers Dianne Martin and Cristian Rivera; \$258 for law clerk Donya Akradi; \$125 for legal assistant Patrice Go; and \$95 for intake specialist Noemi Antipuesto and case manager Chris Coyoc. (Reza Decl., ¶¶20–36.)